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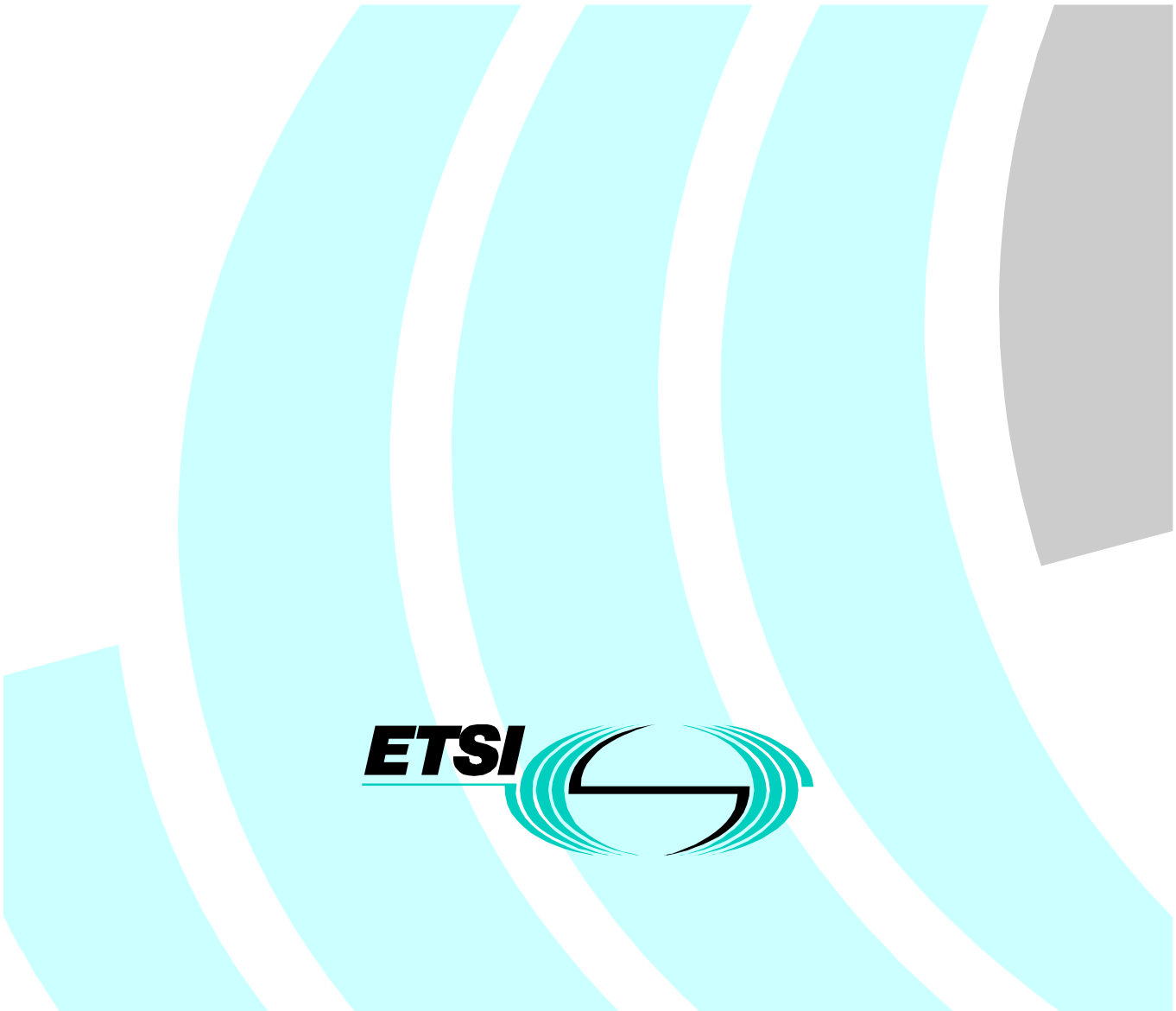
Special Report

Guidelines for the national transposition of ETSI deliverables in Central and Eastern European Countries (CEEC)



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Foreword

This Special Report (SR) has been produced by ETSI.

"Selective national transposition policy" recommended in the present document does not mean any deviation from the standards transposition rules laid down in the EU "acquis". Selectivity here concerns the *translation* and not the transposition of the ETSI deliverables. Translation is only one of the possible ways for realizing national transposition. Besides, the present document suggests some *priorities* to be followed in the transposition process, which do not influence the final target to be achieved, only allocate steps to be taken on a time scale. Though this time scale is longer than required within the Community, the transposition times are recommended especially for the CEEC and other states outside the EU in order to catch up with the EU countries *during a transition period before entering the community.* These transposition times are to be applied only during the transition period and not thereafter, so that as soon as they become EU members, EU "acquis" will be fully applied to them.

1 Scope

The present document gives guidelines for the national transposition of ETSI deliverables in CEEC.

2 References

Void.

3 Definitions

The present document uses the terms and definitions of the ETSI Technical Working Procedures.

3.1 Deliverables

ETSI deliverable: A document (TS, TR, ES, EG or EN (telecommunications series); or, in previous nomenclature, ETS, I-ETS, ETR, TBR, TCR-TR or TC-TR) produced as the result of an ETSI work item.

ETSI Guide, EG: An ETSI deliverable, containing mainly informative elements, approved for publication by application of the Membership Approval Procedure.

ETSI Standard, ES: An ETSI deliverable, containing normative provisions, approved for publication by application of the Membership Approval Procedure.

ETSI Technical Specification, TS: An ETSI deliverable, containing normative provisions, approved for publication by a Technical Body.

ETSI Technical Report, TR: An ETSI deliverable, containing mainly informative elements, approved for publication by a Technical Body.

European Standard (telecommunications series), EN (telecommunications series), EN: An ETSI deliverable containing normative provisions, approved for publication in a process involving the National Standards Organizations and/or ETSI National Delegations with implications concerning standstill and national transposition.

Harmonized Standard: An EN (telecommunications series) which has been entrusted to ETSI by a mandate from the European Commission under European Directive 83/189/EEC and has been drafted taking into account the applicable essential requirements and whose reference has subsequently been announced in the Official Journal of the European Communities.

Special Report, SR: A document other than an ETSI deliverable, which contains information which it is felt useful to make publicly available for reference purposes.

3.2 Deliverables - previous nomenclature

Amendment: An ETSI deliverable defining a change other than editorial to a published ETS, I-ETS, ETR or TBR, approved by a Technical Body and the subsequent approval procedure used for that type of ETSI deliverable.

Corrigendum: An ETSI deliverable defining an editorial change to a published ETS, I-ETS, ETR or TBR, published by the Secretariat in consultation with a Technical Body Chairman.

European Telecommunication Standard, ETS: An ETSI deliverable, containing normative, provisions approved for publication in a process involving the National Standards Organizations and/or ETSI National Delegations with implications concerning standstill and national transposition.

Interim European Telecommunication Standard, I-ETS: An ETSI deliverable, containing normative provisions, approved for publication by weighted national voting, with no standstill or national transposition implications.

ETSI Technical Report, ETR: An ETSI deliverable, containing informative elements, approved for publication by a Technical Committee.

GSM Technical Specification, GSM-TS: An ETSI deliverable approved for publication by the Special Mobile Group.

Technical Basis for Regulation, TBR: An ETSI deliverable produced under a mandate from the European Commission specifically for the purpose of European regulation containing only essential requirements (as defined in European Directive 91/263/EEC), approved for publication by weighted national voting, with implications concerning standstill and national transposition.

4 Basic philosophy

Considering the fact that:

- the primary language of standardization is English both at European and international level;
- the terminology of the most advanced techniques is always created first in English, and needs huge effort to be translated correctly to other languages;
- even the best translation involves the risk of distorting and loosing information;
- the settlement of any legal dispute concerning the content of a standard needs to be based on a uniformly understandable text of that standard everywhere in the world;
- all CEEC NSO’s will be required to follow the community "acquis communautaire" as regards the official EU standardization system and processes once the country has become a member of the European Union,

it is advised to maintain, transpose, implement and use all ETSI deliverables - as far as possible - in their originally issued form.

However, the legislation in some countries still requires the unconditional use of national language in standardization. This question is advised to be handled with a reasonable compromise between the demand for using national language and the unconditional demand for adopting European standards. To this end, a selective and pragmatic transposition policy is to be implemented in 4 steps , fully in line with the European legislation, but allowing a transition period for CEEC in order to catch up, as follows.

4.1 Recommended transposition policy, step 1

- Considering the fact that all CEEC who intend to be integrated into the EU should transpose ETSI standards into their national standards system as soon as possible, preferably within 3 months after published by ETSI;
- Considering the fact that the great majority of ETSI deliverables addresses only a very small group of professionals and specialists in each country and that these understand and use deliverable without translation, (50 to 300 persons per deliverable, as it was clearly pointed out in the Assessment Report on the CEEC Questionnaire "Let us pave the route towards Europe" - see the document ETSAG #11 Temp.Doc.17);

- Considering the fact that the volume of ETSI deliverables at the moment runs over 160.000 pages and its rated annual growth is at least 20 000 pages per year,

it is recommended - as a first step - to announce all deliverables published by ETSI (like ENs, TBRs, ETSs and I-ETSs) with their full English (and translated) titles in the Official Journal of the NSO within 3 months after their publication. This announcement should be legally considered as equivalent to their official introduction into the national standards system.

It is also recommended to announce in the official journal of the NSO ETSI deliverables like ETRs, ESs, EGs, TRs and TSs within 3 months after their publication by ETSI and accept them at national level as documents to which ETSI standards may have normative references.

4.2 Recommended transposition policy, step 2

- Considering the fact that all CEEC who intend to be integrated into the EU have a very restricted budget for transposition purposes;

- Considering the fact that all CEEC who intend to be integrated into the EU suffer from insufficient professional translating capacity which is by far not enough to keep pace with the growth of newly published ETSI deliverables;

- Considering the fact that - simultaneously with the translation of ETSI deliverables - a national vocabulary of new technical terms is advisable to be developed in order to ensure a professionally good and understandable translation,

it is strongly recommended that a competent standards committee of the NSO - representing all relevant participants of the concerning segment of the national telecom market should decide on the further handling of the announced EN, TBR, ETS and I-ETS and categorize them within 6 months after being published by ETSI, taking into account the following questions:

1) Is the deliverable relevant for supporting regulatory purposes, i.e. does it serve as a harmonized or normatively referred document for fulfilling requirements of EU directives or not? (E.g.: TBRs, harmonized standards, or ETSs (and ETRs in exceptional cases) normatively referred by a TBR or an harmonized standard). If so, rank the considered deliverable into the category No.1.

2) Consider the deliverables of category No.1 and investigate, which of them have public interest and are to be used outside of the narrow circle of professionals (i.e. 50 to 300 specialists per country, as already mentioned). Those deliverables, to be used by the *general public*, leave in the category No.1, while the others (even TBRs if they are not to be used by the general public) rank into the category No.2.

3) Take the remaining group of ETSI deliverables announced but not categorized yet. Consider, which of them have key importance e.g. giving an introduction into new techniques or services to be implemented or giving instructions for the use of *a family of standards*. (E.g. many ETRs and TRs have such functions). Rank them into the category No.3 and the rest of the group to category No.4.

4.3 Recommended transposition policy, step 3

1) Ensure that category No.1 documents be fully translated and issued in the national language by the NSO possibly within 1 year after being issued by ETSI. (This category may cover about 5 per cent of ETSI deliverables).

2) Ensure that category No.2 documents be provided with national foreword possibly within 1 year after being published by ETSI. It is recommended that the "Table of contents" be also translated and issued by the NSO. (This category may cover about 10 per cent of ETSI deliverables).

3) Ensure that category No.3 documents be handled on a case-by-case basis, whether they:

   - be fully translated;

   - be provided with national foreword;

   - be provided with national foreword (possibly including translated table of contents);

- be provided with national foreword, translated table of contents and a national vocabulary part.

The category No.3 may be stretched over 10 % of ETSI deliverables, depending on the human resources and the budget of the NSO available for translation purposes.

4) The overwhelming 75 % or more of the ETSI deliverables ranked into the category No.4 do not need any special care after the announcement in the Official Journal of the NSO.

4.4 Recommended transposition policy, step 4

In the case of ENs, TBRs and ETSs being rejected by a negative national vote, whose immediate introduction into the national standards system is suspended, the competent standards body of the NSO should initiate the necessary measures to be taken at national level in order to eliminate - as soon as possible - the reasons for the suspension. Simultaneously, the NSO should notify ETSI of the fact of suspension, as well as of the planned date of its withdrawal.

When the suspension is withdrawn, the standard be announced without delay in the Official Journal of the NSO and the steps 1, 2 and 3 be applied.

Annex A (informative): Process chart for the national transposition steps 1 to 3

Step 1: All ETSI deliverables with their full English (and translated) titles should be announced in the NSO's Official Journal.

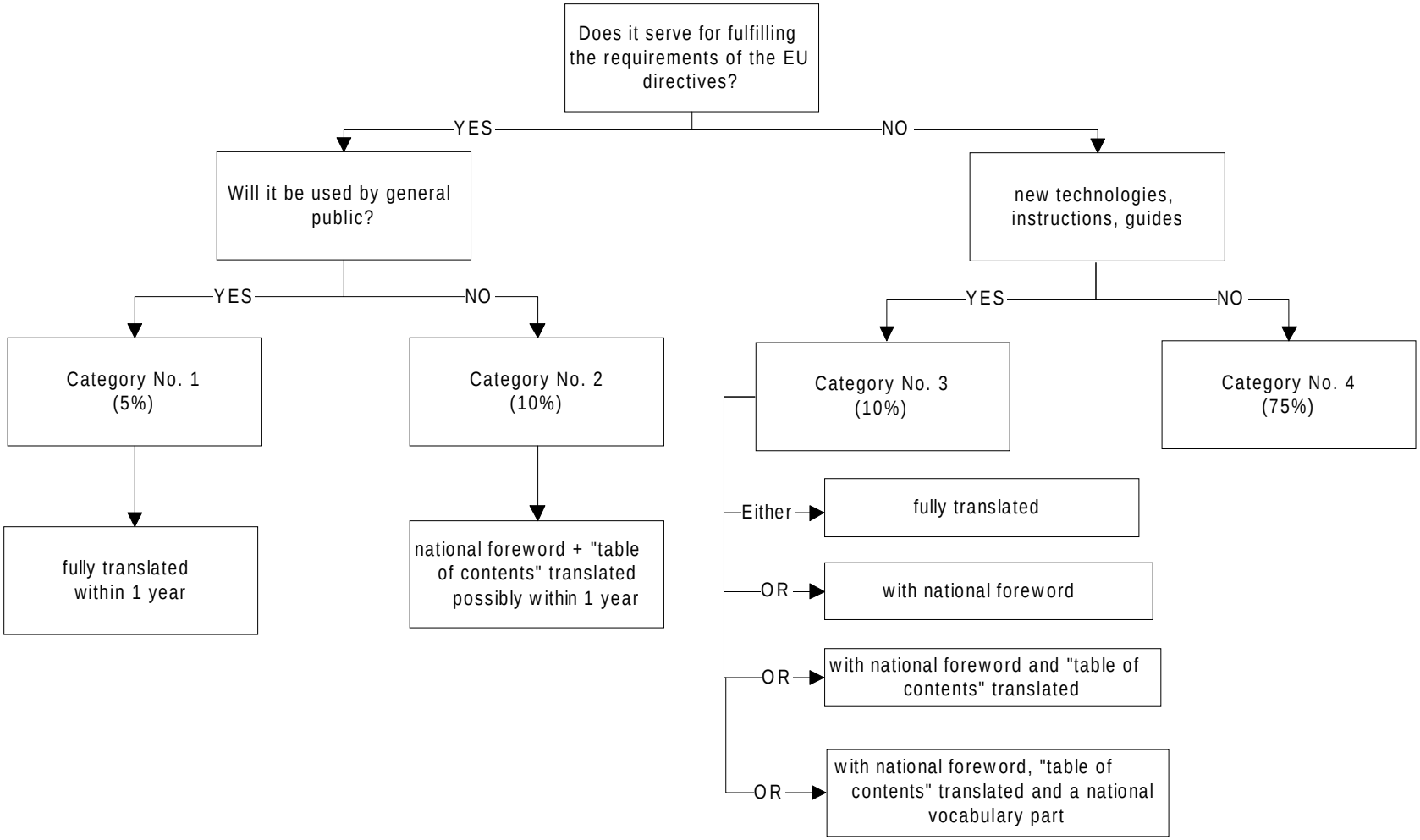

Figure A.1

Bibliography

The following material, though not specifically referenced in the body of the present document (or not publicly available), gives supporting information.

- ETSAG #11 Temp.Doc.17: "Assessment Report on the CEEC Questionnaire "Let us pave the route towards Europe".

History

Document history		
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